**1999 Y L R 356**

**[Lahore]**

**Before Muhammad Nawaz Abbasi, J**

**Raja NASIR HUSSAIN Petitioner**

**versus**

**The STATE Respondent**

Criminal Miscellaneous No. 127/13 of 1999, decided on 13th April, 1999.

**(a) Criminal Procedure Code (V of 1898)---**

----S. 497---Penal Code (XLV of 1860), Ss.381-A, 413 & 414---Bail, grant of---Rule of consistency ---Co-accused had already been granted bail and the case of the accused was not distinguishable from that of co-accused--Mere registration of criminal cases against accused was no proof of a. person to be habitual offender---Bail was allowed following the rule of consistency.

**(b) Criminal Procedure Code (V of 1898)---**

----S.497, proviso third---Habitual offender--Proof---Mere registration of criminal cases against a person is no proof of his being a habitual offender, unless he was found guilty after trial.

Sheikh Muhammad Suleman for Petitioner.

Malik Muhammad Qayyum for the State

**ORDER**

The petitioner Raja Nasir Hussain is under arrest in case F.I.R. No.138, dated 12-4-1998 for offences under sections 381-A/ 413 and 414, P.P.C. registered at Police Station New Town, District Rawalpindi on the statement of Major Muhammad Nisar alleging therein that he is posted at Okara and to celebrate Eid had come to his native Town Rawalpindi, when on 12-4-1998 he went to the house of his in-laws alongwith his family at Sattelite Town, Rawalpindi. The Suzuki Car Model 1995 bearing registration No.AJK/9222 which he had got on rent, from a car dealer was parked outside the house of his in-laws when at 1230 hours on his going outside, the car was found missing having stolen by some unknown person.

2. Learned counsel for the petitioner contends that Shahid Karamat, co-accused of the petitioner was granted bail by the learned Additional Sessions Judge through order, dated 28-9-1998 with the observation that no case under section 381-A, P. P. C. is apparently made out against the said accused whereas the petitioner whose case is at par with Shahid Karamat co-accused has been refused the same concession on the ground that he is involved in some other cases of similar nature.

It is clarified by learned counsel for the petitioner that the petitioner is on bail in all other cases and is not a habitual offender, therefore, the 3rd proviso to section 497, Cr.P.C. cannot be applied with a view to withhold the concession of bail.

3. The learned Assistant Advocate General submitted that Raja Nasir another accused, during the investigation disclosed that the petitioner and one Shahid Karamat had committed the theft of the car in question which was recovered from one Nasir Zulfiqar who stated that he had purchased the same for a consideration of Rs.15,000 from Nasir Hussain and Shahid Karamat. He, however, could not distinguish the case of the present petitioner from that of Shahid Karamat co-accused except to contend that the petitioner is involved in five cases of similar nature, therefore, he cannot claim the concession of bail on the strength of bail granted to his co-accused.

4. I have heard learned counsel for the petitioner as well as the learned Assistant Advocate-General and have also perused the record. The case of the petitioner is not distinguishable to that of Shahid Karamat co-accused who has been granted bail by the learned Additional Sessions Judge. The only distinguishing feature pointed out was that the petitioner is involved in five other cases of similar nature. The mere registration of criminal cases is no proof of a person to be habitual offender unless he is found guilty after trial. Shahid Karamat, co-accused having similar role as of the petitioner has been granted bail and following the rule of consistently, I allow this petition and grant bail to the petitioner subject to his furnishing bail bond in the sum of Rs.10,000 with one surety in the like amount to the satisfaction of the trial Court/Illaqa Magistrate.

**Bail granted.**

Q.M.H./MAK./N-147/L